

COMBINED SYNOPSIS/SOLICITATION NOTICE:

Requirement Title: (2) TEIKOKU/CHEMPUMP, G-SERIES, MANUFACTURER'S P/N GC-3K-3S. **Brand Name Mandatory**

Solicitation Number: N3904026Q5450

Response Deadline: 4/22/2026

POC: Lauren LeDuc 207-438-6635 lauren.w.leduc.civ@us.navy.mil

GENERAL INFORMATION:

1. This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the format in subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued. Paper copies of this solicitation will not be available. This combined synopsis/solicitation SHALL be posted on SAM.gov.

2. This solicitation documents and incorporates provisions and clauses in effect through FAC 2026-01 and DFARS Change Notice 2025-1110. It is the responsibility of the contractor to be familiar with the applicable clauses and provisions. The clauses may be accessed in full text at these addresses:
<https://www.acquisition.gov/browse/index/far> and http://www.acq.osd.mil/dpap/dars/change_notices.html.

3. This solicitation is being issued as a(n): Request For Quotation (RFQ)

4. This acquisition is for: Total Small Business Set Aside

5. North American Industry Classification System Code (NAICS): 333914- Measuring Dispensing and Other Pumping Equipment Manufacturing

6. The size standard is: 750 Employees

REQUIREMENT INFORMATION:

The Portsmouth Naval Shipyard requests responses from sources capable of providing the following:

- Required Delivery Date: 1 May, 2026. ASAP
- Place of Performance: Portsmouth Naval Shipyard, Kittery, ME 03904

METHOD OF PROPOSAL SUBMISSION:

Offers shall be emailed. All responsible sources may submit a quote which shall be considered by the agency.

System for Award Management (SAM): Vendors must be registered in the SAM database to be considered for award. Registration is free and can be completed on-line at <http://www.sam.gov/>.

All quotes should include this form filled out in its entirety (highlighted yellow fields are required).

**REQUEST FOR QUOTATION
N3904026Q5450**

THIS IS NOT AN ORDER

PLEASE PROVIDE DELIVERED PRICES, AVAILABILITY, AND PRICE SOURCE WITH QUOTE

REFERENCE # N3904026Q5450

DUE DATE: 4/22/2026 10:00 AM ET

From: Portsmouth Naval Shipyard

Lauren.w.leduc.civ@us.navy.mil

Contracting, Code 410.3

Kittery, ME 03904

PHONE: 207-438-6635

Your company info:

Name:

POC:

(P)

Email:

Cage Code:

BUSINESS SIZE (circle one): **SMALL** **LARGE** **PAYMENT TERMS** **%** **DAYS**

MOBILIZATION TIME: **ARO**

F.O.B. DESTINATION, Y N

IF NO, SHIPPING COST

PRICES DERIVED FROM (CHECK ONE)

COMMERCIAL PRICE LIST DATED

INTERNAL PRICE LIST DATED

OTHER (PLEASE EXPLAIN)

Please indicate your preferred payment method by checking one of the options below. Payment options available are WAWF and GCPC: Government Commercial Purchase Card (up to \$100,000). Please ensure that you register for WAWF (www.wawftraining.com)

GCPC ☐ WAWF (Wide Area Workflow) ☐

*Please note that purchase card orders are not paid up front. Once material is received, a Government cardholder may be contacted for purchase card information.

☒ If checked, to be awarded on an "All or None" basis, and CPARS evaluation procedures apply.

YOUR SIGNATURE

DATE

<u>ITEM</u>	<u>DESCRIPTION</u>	<u>QTY</u>	<u>Unit Price</u>	<u>Total</u>
0001	Brand Name Mandatory- TEIKOKU/CHEMPUMP, G-SERIES, MANUFACTURER'S P/N GC-3K-3S <i>In Accordance with Attachment 1</i> Please Include Cost of Freight in CLIN 0001	1 EA		

- **This is a Brand Name Mandatory Procurement. Proposed alternatives to the requested unit will be rejected.**
- Required Delivery Date: 1 May 2026
- Place of performance is: Portsmouth Naval Shipyard, Kittery, ME 03904
- For evaluation purposes, please provide any applicable procedures and technical information. If no information is provided, your quotation may be determined to be unresponsive.
- Award may be made on the basis of adherence to the schedule and/or soonest mobilization.
- Please provide published commercial labor rates and breakdown of total prices, if applicable, for Price Justification purposes.
- See Below for Detailed Statement of Work and Applicable Clauses.

ALL OFFERS SHALL INCLUDE THIS FORM FILLED OUT IN ITS ENTIRETY (HIGHLIGHTED YELLOW FIELDS ARE REQUIRED).

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CLAUSES:

Responsibility and Inspection: unless otherwise specified in the order, the supplier is responsible for the performance of all inspection requirements and quality control. The following FAR provisions and clauses are applicable to this procurement:

52.203-3	Gratuities
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions
52.203-12	Limitation On Payments To Influence Certain Federal Transactions
52.204-7	System for Award Management
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards
52.204-13	System for Award Management Maintenance
52.204-19	Incorporation by Reference of Representations and Certifications
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations—Representation
52.209-5	Certification Regarding Responsibility Matters
52.209-6	Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment
52.209-7	Information Regarding Responsibility Matters
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters
52.209-10	Prohibition on Contracting With Invented Domestic Corporations
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law
52.211-14	Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use
52.211-15	Defense Priority and Allocation Requirements
52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services
52.217-8	Option to Extend Services
52.219-1	ALT I Small Business Program Representations--Alternate I
52.219-6	Notice of Total Small Business Set-Aside
52.219-28	Post-Award Small Business Program Rerepresentation
52.222-3	Convict Labor
52.222-19	Child Labor—Cooperation with Authorities and Remedies
52.222-36	Equal Opportunity for Workers with Disabilities
52.222-37	Employment Reports on Veterans
52.222-40	Notification of Employee Rights Under the National Labor Relations Act
52.222-41	Service Contract Labor Standards
52.222-42	Statement of Equivalent Rates for Federal Hires
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts)
52.222-50	Combating Trafficking in Persons
52.222-54	Employment Eligibility Verification
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026
52.222-62	Paid Sick Leave Under Executive Order 13706
52.223-5	Pollution Prevention & Right-To-Know Information
52.223-23	Sustainable Products and Services
52.226-7	Drug-Free Workplace
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving
52.232-8	Discounts For Prompt Payment
52.232-33	Payment by Electronic Funds Transfer—System for Award Management
52.232-39	Unenforceability of Unauthorized Obligations
52.233-1	Disputes
52.237-2	Protection Of Government Buildings, Equipment, And Vegetation
52.242-15	Stop-Work Order
52.242-17	Government Delay of Work
52.246-4	Inspection of Services—Fixed-Price
52.246-20	Warranty of Services
52.247-34	F.o.b. Destination

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52.252-1	Solicitation Provisions Incorporated by Reference
52.252-2	Clauses Incorporated by Reference
52.252-5	Authorized Deviations in Provisions
52.252-6	Authorized Deviations in Clauses
252.203-7000	Requirements Relating to Compensation of Former DoD Officials
252.203-7002	Requirement to Inform Employees of Whistleblower Rights
252.203-7005	Representation Relating to Compensation of Former DoD Officials
252.204-7003	Control of Government Personnel Work Product
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2024-O0013, Revision 1)
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements
252.204-7020	NIST SP 800-171 DoD Assessment Requirements
252.204-7021	Cybersecurity Maturity Model Certification
252.204-7022	Expediting Contract Closeout
252.204-7023	Reporting Requirements for Contracted Services
252.204-7024	Notice on the Use of the Supplier Performance Risk System
252.205-7000	Provision of Information to Cooperative Agreement Holders
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is A State Sponsor of Terrorism
252.209-7021	Prohibition Relating to Conflicts of Interest in Consulting Services-Certification
252.211-7003	Item Unique Identification and Valuation
252.211-7008	Use of Government-Assigned Serial Numbers
252.215-7008	Only One Offer
252.215-7010	Requirements for Certified Cost of Pricing Data and Data Other Than Certified Cost or Pricing Data
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors
252.215-7016	Notification to Offerors-Postaward Debriefings
252.216-7010	Postaward Debriefings for Task Orders and Delivery Orders
252.219-7000	Advancing Small Business Growth
252.219-7003	Small Business Subcontracting Plan (DoD Contracts)
252.223-7008	Prohibition of Hexavalent Chromium
252.225-7000	Buy American-Balance of Payments Program Certificate
252.225-7001	Buy American and Balance of Payments Program
252.225-7012	Preference for Certain Domestic Commodities
252.225-7020	Trade Agreements Certificate
252.225-7021	Trade Agreements
252.225-7031	Secondary Arab Boycott of Israel
252.225-7035	Buy American-Free Trade Agreements-Balance of Payments Program Certificate
252.225-7036	Buy American-Free Trade Agreements-Balance of Payments Program
252.225-7048	Export-Controlled Items
252.225-7050	Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten
252.225-7055	Representation Regarding Business Operations with the Maduro Regime
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation
252.225-7060	Prohibition on Certain Procurements from the Xinjing Uyghur Autonomous Region
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns
252.227-7015	Technical Data-Commercial Products and Commercial Services
252.227-7037	Validation of Restrictive Markings on Technical Data

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252.232-7003	Electronic Submission of Payment Requests and Receiving Reports
252.232-7006	Wide Area WorkFlow Payment Instructions
252.232-7010	Levies on Contract Payments
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel
252.237-7019	Training for Contractor Personnel Interacting with Detainees
252.243-7001	Pricing Of Contract Modifications
252.243-7002	Requests for Equitable Adjustments
252.244-7000	Subcontracts for Commercial Products or Commercial Services
252.247-7023	Transportation of Supplies by Sea—Basic
252.247-7028	Application for U.S. Government Shipping Documentation/Instructions

NAVSEA Texts:

C-202-H001	ADDITIONAL DEFINITIONS--BASIC (NAVSEA) (OCT 2018)
C-204-H001	USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (OCT 2018)
C-211-H001	ACCESS TO THE VESSEL(S) (OCT 2018)
C-211-H018	APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)
C-211-W001	REPLACEMENT PARTS AVAILABILITY (NAVSEA) (OCT 2018)
C-222-H001	ACCESS TO THE VESSELS BY NON-U.S. CITIZENS (NAVSEA) (OCT 2018)
C-223-H002	SAFETY, HEALTH AND FIRE REQUIREMENTS FOR SHIP REPAIR (NAVSEA) (JAN 2019)
C-223-H003	EXCLUSION OF MERCURY (NAVSEA) (MAR 2019)
C-223-H004	MANAGEMENT AND DISPOSAL OF HAZARDOUS WASTE (NAVSEA) (MAY 2023)
C-223-N002	RESTRICTIONS ON USE OF YELLOW MATERIAL (NAVSEA) (OCT 2018)
C-223-W002	ON-SITE SAFETY REQUIREMENTS (NAVSEA) (OCT 2018)
C-227-H006	DATA REQUIREMENTS (NAVSEA) (OCT 2018)
C-247-H001	PERMITS AND RESPONSIBILITIES (NAVSEA) (DEC 2018)
D-211-H001	PACKAGING OF DATA (NAVSEA) (FEB 2022)
D-211-H002	MARKING OF REPORTS (NAVSEA) (OCT 2018)
D-247-H002	PACKAGING OF SUPPLIES--BASIC (NAVSEA) (DEC 2020)
D-247-H004	MARKING AND PACKING LIST(S)- BASIC (NAVSEA)(FEB 2022)
D-247-W001	PROHIBITED PACKING MATERIALS (NAVSEA) (OCT 2018)
E-246-H013	INSPECTION AND ACCEPTANCE OF DATA (NAVSEA)(OCT 2018)
F-211-W001	PARTIAL DELIVERIES (NAVSEA)(OCT 2018)
F-247-H001	DELIVERY OF DATA (NAVSEA) (OCT 2018)
F-247-N002	INSTRUCTIONS FOR DELIVERIES TO THE PORTSMOUTH NAVAL SHIPYARD (NAVSEA) (MAR 2019)
G-232-H002	PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)
G-232-H005	SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019)
G-242-H001	GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023)
G-242-H002	HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)
H-209-H003	REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST (NAVSEA) (NOV 2022)
H-223-N001	INFORMATION ON EXPOSURE TO HAZARDOUS MATERIAL (NAVSEA) (JUL 2024)
K-227-W001	INSTRUCTIONS FOR OBTAINING EXPORT-CONTROLLED TECHNICAL DATA (MAY 2022)
L-204-H003	NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTOR FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019)
L-209-H009	NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT(S) OF INTEREST (NAVSEA) (APR 2022)
L-215-W003	ACCESS TO PRE-PROPOSAL READING MATERIAL--ALTERNATE II (APR 2024)

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52.212-1 Instructions to Offerors—Commercial Products and Commercial Services.

As prescribed in 12.205(a)(1), insert a clause substantially as follows:

Instructions to Offerors—Commercial Products and Commercial Services (Deviation Date)

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
- (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
- (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids).* The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings.* If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

- (1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.
- (2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.
- (3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.
- (4) A summary of the rationale for award.
- (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

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SUPPLEMENTAL INSTRUCTIONS

ADDENDUM TO 52.212-1 Instructions to Offerors--Commercial Items

I. GENERAL

In addition to FAR 52.212-1, "Instructions to Offerors – Commercial Items" and any other instructions contained elsewhere in this solicitation, the following information is provided:

Objections to any of the terms and conditions of the RFQ will constitute a deficiency which will make the offer unacceptable.

IMPORTANT NOTES:

- (1) Vendors shall respond to all requirements of the solicitation document. Vendors are cautioned not to alter the solicitation.
- (2) Initial quotes and any modifications thereto are to be submitted to the Contracting Office on or before the closing dated time cited elsewhere in this Request for Quote.
- (3) Responses should be submitted via email only
- (4) Please review all specifications carefully.

II. CONTENT OF QUOTE

1. RFQ pricing and information pages completed by the vendor.
2. A Point of Contact, name, email address, phone, CAGE code.
3. Representations and Certifications completed by the vendor in accordance with instructions contained elsewhere in this solicitation. If the vendor has completed all of the representations and certifications required by this solicitation in SAM.gov in accordance with FAR 52.204-7, then the vendor need not submit the hardcopy Representations and Certifications.
4. Technical Submission as noted below.
 - a. Submission of technical information demonstrating compliance with the specifications, including, but not limited to:
 - Technical Acceptability
 - Experience
5. Pricing Submission. Vendors shall provide firm, fixed prices for each CLIN

Factor 1- Technical Acceptability Submissions: Vendors shall demonstrate their Technical Acceptability by meeting specifications and document capabilities

Factor 2- Past Performance Submission:

Past performance information is required for the vendor and any subcontractors that are proposed to perform at least 20% of the contract's value. To facilitate the evaluation of this factor, the Vendor may provide at least one (1) project or contract that demonstrates recent and relevant Past Performance with providing the type of components called out in the Statement of Work.

The Government will only evaluate projects or contracts that have already been completed. For each submitted past performance contract or project, the following information shall be provided:

- (i) customer's name, organization and contact information;
- (ii) contract or project number and title;
- (iii) dates of performance (identify the start and end dates using months and years);
- (iv) the dollar value of the work completed;
- (v) a description of the work performed and how it is relevant to the Statement of Work;
- (vi) whether the prior project was performed as the prime contractor or subcontractor,

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- (vii) any negative comments or assessments regarding the mobile crane operator's compliance with safety measures and (viii) copies of any Contract Performance Assessment Reports or similar assessments, if available.

The Vendor shall also submit a consent letter, executed by each subcontractor proposed to perform 20% of the contract's value, that authorizes the Government to release adverse Past Performance information to the Vendor so the Vendor can respond to such information during the evaluation process. For projects or contracts for commercial customers, the Vendor shall submit a letter, executed by that commercial customer, that authorizes that customer to release the Vendor's (or subcontractor's) Past Performance information to the Government.

This information shall be sent with the completed N3904026Q5450 RFQ on or before the due date of this solicitation to Lauren LeDuc, Contracting Division, Code 410, Portsmouth Naval Shipyard, Kittery, ME 03904, email: lauren.w.leduc.civ@us.navy.mil. The Government reserves the right to contact references for verification or additional information

Factor 3- Adherence to Schedule: Award may be based on delivery and ability to meet the requested schedule.

Factor 4- Price: The Price Factor will not be rated. The Vendor's response will be evaluated for compliance with the Addendum to 52.212-1, completeness and price reasonableness in accordance with FAR 12.204(a).

If the technical submittal is determined "Unacceptable", it renders the entire quote technically unacceptable. Technical submissions that do not meet the minimum requirements will be rated as "Unacceptable" and will no longer be considered for further competition or award.

52.212-2, Evaluation - Commercial Items is applicable to this procurement.

The Government will award a contract resulting from this solicitation to the responsible vendor whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The contract will be awarded to the vendor with the Best Value Price to the government. Quotes will be evaluated based on the following criteria:

- Technical Acceptability (Must meet specifications and document capabilities)
- Experience
- Adherence to Schedule (Award may be made based on delivery and ability to meet the requested schedule)
- Price (Best Value, after adherence to other factors)

Vendors will be required to submit a quote that will be evaluated in accordance with the specifications provided in the solicitation, FAR 52.212-1 Instruction to Offerors. Failure to include pricing for all line items shall be cause for rejection of the quote for all line items.

Technical: Please provide documentation demonstrating your capabilities in fulfilling the SOW.

Technical Evaluation Ratings	
Rating	Description
Acceptable	Submission clearly meets the minimum requirements of the solicitation

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Unacceptable	Submission does not clearly meets the minimum requirements of the solicitation
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Technical Evaluation Ratings Rating Description Acceptable Submission clearly meets the minimum requirements of the solicitation Unacceptable Submission does not clearly meet the minimum requirements of the solicitation

Factor 2- Past Performance Submission:

Past performance information is required for the vendor and any subcontractors that are proposed to perform at least 20% of the contract's value. To facilitate the evaluation of this factor, the Vendor may provide at least one (1) project or contract that demonstrates recent and relevant Past Performance with providing the type of components called out in the Statement of Work.

The Government will only evaluate projects or contracts that have already been completed. For each submitted past performance contract or project, the following information shall be provided:

- (viii) customer's name, organization and contact information;
- (ix) contract or project number and title;
- (x) dates of performance (identify the start and end dates using months and years);
- (xi) the dollar value of the work completed;
- (xii) a description of the work performed and how it is relevant to the Statement of Work;
- (xiii) whether the prior project was performed as the prime contractor or subcontractor,
- (xiv) any negative comments or assessments regarding the mobile crane operator's compliance with safety measures and (viii) copies of any Contract Performance Assessment Reports or similar assessments, if available.

The Vendor shall also submit a consent letter, executed by each subcontractor proposed to perform 20% of the contract's value, that authorizes the Government to release adverse Past Performance information to the Vendor so the Vendor can respond to such information during the evaluation process. For projects or contracts for commercial customers, the Vendor shall submit a letter, executed by that commercial customer, that authorizes that customer to release the Vendor's (or subcontractor's) Past Performance information to the Government.

This information shall be sent with the completed N3904026Q5450 RFQ on or before the due date of this solicitation to Lauren LeDuc, Contracting Division, Code 410, Portsmouth Naval Shipyard, Kittery, ME 03904, email: lauren.w.leduc.civ@us.navy.mil. The Government reserves the right to contact references for verification or additional information

Schedule: Please confirm availability for requested period of performance. If your company is unavailable for the requested period, please provide earliest available start. Please provide your best and fastest schedule. Award may be made to the vendor who can provide the soonest execution.

Price: The Price will be evaluated as Best Value, however, the Contracting Officer reserves the right to award based on ability to meet the required schedule.

If the technical submittal is determined "Unacceptable", it renders the entire quote technically unacceptable. Technical submissions that do not meet the minimum requirements will be rated as "Unacceptable" and will no longer be considered for further competition or award.

C-223-H003 EXCLUSION OF MERCURY (NAVSEA) (MAR 2019)

(a) Definitions. As used in this text:

Article means a manufactured item other than a fluid or particle: (i) which is formed to a specific shape or design during manufacture;

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(ii) which has end use function(s) dependent in whole or in part upon its shape or design during end use; and
(iii) which under normal conditions of use does not release more than very small quantities, e.g., minute or trace amounts of a hazardous chemical, and does not pose a physical hazard or health risk to employees.

Boundary of containment means a continuous tight seal (barrier) to prevent the release of functional mercury during normal operation and maintenance. Examples include the exterior of a fluorescent lamp, glass capsule of a mercury switch, and container for mercury reagents. A double boundary of containment consists of two independent seals.

Functional mercury means mercury or mercury compound(s) contained in equipment that is required for the equipment to operate properly, such as that found in mercury switches, fluorescent lamps, flat-panel monitors, thermostats, thermostat probes, small coin type batteries, barometers, and dental amalgams.

Hardware means any article, container, piece of material, individual part, subassembly, assembly, component, or system to which mercury control requirements apply.

Mercury-free means hardware that does not contain functional mercury and is not contaminated by mercury or mercury compounds.

Portable means items that are frequently transported during normal operation. Desk lamps, shop lights, and hand-held instruments are considered portable, while bulbs in stationary light fixtures are not. In general, items that require transport only during maintenance, installation, and removal of the items are not considered portable.

(b) The Contractor, and all subcontractors and vendors, shall ensure that mercury or mercury containing compounds are not intentionally added to, or come in direct contact with, hardware or supplies furnished under this contract.

(1) The Contractor shall ensure that mercury and mercury compounds are not taken onboard naval vessels by Contractor, subcontractor, or vendor personnel except for functional mercury used in batteries, dental amalgams, fluorescent lamps, flat-panel monitors, required instruments, sensors or controls, weapon systems, and chemical analysis reagents specified by the Naval Sea Systems Command (NAVSEA).

(2) Portable fluorescent lamps and portable instruments containing elemental mercury must be shock-proof in accordance with MIL-DTL-901E entitled Requirements for Shock Tests, H.I. (High Impact) Shipboard Machinery, Equipment, and Systems and have mercury enclosed by a double boundary of containment. Some devices with liquid crystal display (LCD) screens utilize a fluorescent bulb backlight to illuminate the LCD screen. No additional restrictions or controls apply to devices with LCD screens; however, the Contractor shall remove the LCD screen and seal it in plastic following any evidence that the backlight failed.

(3) For Submarines, any use of mercury containing items must be approved as required by the Nuclear Powered Submarine Atmosphere Control Manual (S9510-AB-ATM-010/U) Volume 1.

(4) The Contractor shall ensure that mercury and mercury compounds do not contact hardware surfaces in systems covered by NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submarine air systems, level I systems per NAVSEA Publication 0948-LP-045-7010, NAVSEA Material Control Standard, or the submarine safety program (SUBSAFE) surfaces during maintenance or repair. Such hardware is designated as mercury-free. The Contractor shall ensure that all other hardware that could be structurally degraded by contamination with elemental mercury or reactive mercury compounds is separated from it by sufficient distance, or boundaries of containment that effectively prevents contact in all but the most extreme circumstances.

(5) The Contractor shall check any hardware surfaces in the above systems which are known or suspected to have come in contact with mercury or mercury compounds for evidence of structural degradation and external mercury contamination. The existence of external mercury contamination can be determined following MIL-STD-2041D entitled Control of Detrimental Materials.

(6) The presence of mercury in a product may be determined by checking product labeling on material safety data sheets or safety data sheets. Chemical analysis is not required.

(7) The Contractor shall dispose of any mercury and mercury compounds in accordance with OPNAV Manual (OPNAV M- 5090.1) entitled Environmental Readiness Program Manual of 10 January 2014.

(8) If the use of mercury or mercury compounds cannot be avoided, a risk assessment and waiver request, if required, must be performed and submitted per the NAVSEA Hazardous Material Avoidance Process (T9070-AL-DPC-020/077-2). For systems covered by the NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submit the risk assessment and waiver request, if required to Nuclear Propulsion (NAVSEA 08).

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(c) In all cases where mercury or a mercury compound has contacted hardware surfaces required to be mercury-free the Contractor shall immediately provide a report to the NAVSEA Dry Environmental Systems and Hazardous Materials (NAVSEA 05P5) via the cognizant contract administration safety office. Reports concerning systems covered by NAVSEA Manual 0989- 064-3000 must include NAVSEA Nuclear Propulsion Directorate (SEA 08) in the distribution. Reports must be in letter form and include the date and details of the contact, the surfaces contacted, the recovery actions taken, and the status of the affected surfaces.

(End of Text)

(END OF COMBINED SYNOPSIS/SOLICITATION)